TAKUDZWA MARTIN MUNYAWARARA
versus
THE STATE

HIGH COURT OF ZIMBABWE
HARARE, 11 September 2025 & 15 January 2026
**MAWADZE DJP & WAMAMBO J**

**Criminal Appeal**

*T Mpofu & T L Mapuranga*, for the appellant
*R Chikosha*, for the respondent

MAWADZE DJP: This is an appeal against both conviction and sentence.

The then thirty-five (35) year old appellant was convicted after a contested trial by the magistrate sitting at Harare (the court *a quo*) for contravening s 136 of Criminal Law (Codification & Reform Act) [*Cap 9:23*], which relates to fraud.

The appellant was sentenced to eighteen (18) months imprisonment, of which four (4) months imprisonment was suspended for five (5) years on the usual conditions of good behaviour. Of the remaining twelve (12) months, six (6) months were suspended on condition that the appellant restitutes the complainant for USD 48,000 or its equivalent in Zig of the prevailing interbank rate on or before 15 April 2024. The appellant is therefore to serve an effective six (6) months imprisonment if restitution is paid. [sic]

At the time of the hearing of the appeal, the appellant was out of custody after paying bail pending appeal on 28 March 2025 and having served for only one month. There is no evidence placed before us that the appellant had restituted the complainant in the sum of US$48 000-00 or any part of the sum of the amount thereof to date.

This matter is a straightforward one.

The charge is that sometime in June 2023, the appellant misrepresented to the complainant, one Mandy Mvukwe, that he had the capacity to purchase and supply mobile toilets from China on her behalf, knowing that he did not have such capacity. The State's case is that the appellant had the intention to deceive the complainant or did realise that there was a real risk or possibility of deceiving the complainant. In fact, it is the State case that as a

result of this misrepresentation, the complainant suffered actual prejudice in the sum of US$48,000.

THE FACTS

The complainant, Mandy Mvukwe, is employed by Garwe Restaurant as the Managing Director. She also runs a family business, a company called Elegant Edge, in which she is a shareholder and Managing Director. There is a Finance Manager and an Operations Manager. Mandy Mvukwe was well known to the appellant, whom she regarded as a friend.

The appellant admitted that he was given US$48,000 by Mandy Mvukwe. The dispute relates to the purpose of that money or why the appellant was given the US$48 000-00.

THE STATE'S VERSION

According to the State, the complainant in May 2023 decided to venture into the business of providing mobile toilets for hire at various functions. As per Mandy Mvukwe's evidence, she engaged the appellant, who said he had the capacity to import such mobile toilets from China on behalf of the complainant at US$300 each. As result the appellant was asked to import 160 mobile toilets at US$300-00 each inclusive of duty and transport at a total cost of US$48 000-00.

The complainant asked for US$48 000-00 from the Finance Manager, which she handed over to the appellant at her Mt Pleasant Heights residence. One Prisca Chikoto, an employee of Elegant Edge, was present when the appellant was given this amount. This should have been on 25 June 2023. The complainant said the appellant was to supply the mobile toilets by the end of July 2023. This did not materialise. The complainant said the appellant started to give excuses and was later evasive. This caused the complainant to report the matter to the police, and despite the report, no mobile toilets were supplied, and the appellant did not pay back the US$48,000.

THE APPELLANT'S VERSION

The appellant said he was aware that a company called Elegant Edge wanted to purchase mobile toilets from China. The appellant disputes that he offered to supply or bring such mobile toilets from China.

The appellant's version is that he was in the business of moving money together with his friends. As a result, he was given the US$48,000 by Mandy Mvukwe in order to move it to China from Zimbabwe, as this would enable the complainant to pay for goods and services in China from such locally sourced funds. According to the appellant, this was simply an illegal transaction meant to circumvent the Exchange Control Act and Regulations and the requirements of the Reserve Bank of Zimbabwe.

The appellant said he was able to do this as he had free funds in South Africa. He would receive the US$48 000-00 locally and then proceed to effect payment on behalf of the complainant in China from such free funds available **for such** outside Zimbabwe. As a result, the complainant would benefit by evading the Exchange Control Regulations.

The appellant's version is that his partner in such illicit deals, one Moses Mohamed, is the one who failed to play ball. He gave the money to Moses Mohamed, but Mohamed failed to deliver.

The basis of the appellant's defence is that this whole transaction with the complainant was illegal. As a result, the principle of *ex turpi causa no oritur* action should apply. The complainant is simply to count her losses and not to ask the esteemed courts to aid her in such illegal deals. At most, the appellant contends that the whole transaction is civil in nature, it being a simple commercial transaction. As a result, it would be an abuse of the criminal justice system to deal with a breach of contract when proper remedies are available at law. The appellant's view is that the courts are simply being used and abused by the complainant for debt collection.

The appellant later in his evidence said the complainant gave him the US$48 000-00 together with a paper containing banking details and reference. He seemed to say he could move money with registered companies in South Africa, Zambia and Mauritius. The appellant conceded in cross-examination that he had preferred two versions of what exactly happened and opined that he was not free when he gave his defence outline to counsel.

FINDINGS BY THE COURT *A QUO*

The court *a quo* dismissed the appellant's version as false. It considered the evidence of Mandy Mvukwe, Choto and the appellant. It also took into account the exhibits produced and the failure by the appellant to produce relevant exhibits.

The court *a quo* did find that the appellant did not provide any proof of the transfer of money to China done by his said colleagues on behalf of the complainant. It also found that the appellant was not consistent in his version and thus untruthful. The court *a quo* concluded that the appellant took advantage of his relationship with the complainant, who trusted him and thus accepted the appellant's misrepresentation.

GROUNDS OF APPEAL

Aggrieved by both the conviction and sentence, the appellant noted the appeal on the basis of the grounds of appeal couched as follows:

"Grounds of Appeal

The court *a quo* erred and misdirected itself by;

Ad Conviction

1. Finding that appellant knew that he had no capacity to deliver the mobile toilets which were sought by the complainant because, upon receiving the money, he did not deliver, when all the evidence on the question showed that the appellant and the complainant had transacted previously without issues, and this capacity could not be contested.
2. Convicting the appellant of conduct which was effectively a civil law claim of breach of contract, as there was no proof of a misrepresentation being made to the complainant, nor was there an intention to defraud.
3. Disbelieving the appellant's version of events regarding the true nature of the transaction, where all evidence, except that of the complainant, showed that the transaction was for transfer of money to China and not purchase of mobile toilets by the appellant.
4. The learned magistrate misdirected herself in convicting the appellant on the basis that he failed to prove the truthfulness of his explanation, despite that no *onus* rests on the accused to prove his innocence

   Ad Sentence
5. Paying lip service to community service, notwithstanding that the effective sentence, falls under the grid of community service

   Ad sentences

6. Failing to consider to (sic) community service as a sentence when this was required in terms of the sentencing guidelines.
7. Passing a custodial statement which was too harsh and induces a sense of shock in the circumstances."

The appellants' prayer is that the conviction should be quashed and the sentence set aside. In the alternative the appellant prays that if the conviction is upheld the overall sentence of 18 months should be upheld, with six months suspended on conditions of good behaviour, and of the remaining 12 months, six months be suspended on condition of restitution of the said US$ 48 000 or its equivalent as stated and the remaining six months on condition the appellants performs community service on the usual conditions.

We now turn to address the grounds of appeal in relation to the conviction.

**Ad Conviction**

1. For clarity purposes, we shall start with ground number 4. A proper reading of the judgment of the court a quo clearly shows that the court a quo clearly shows that the court a quo understood on who the burden of proof lies in criminal matters and the threshold of such burden (see pp. 17 to 18 of the judgment )

The court a quo laid down the correct principles and cited relevant case law in that regard. There is therefore no misunderstanding in that regard.

The appellant probably is of the view that the court *a quo* is said to have failed to correctly apply these principles. However, it is not clear as to how the court a quo misdirected itself in this regard. The fact that the appellant received US$48,000 from the complainant is common cause. It's also clear that the appellant did not show what he did with that money. It was not recovered. The court a quo had therefore to weigh which of the two versions is probable and correct. To our mind, this does not amount to shifting the burden of the proof. It is a correct and proper approach for which the question misdirection cannot be sustained. This ground of appeal clearly lacks merit.

2. The appellant contends that it was improper for the court *a quo* to find that he lacked the capacity to deliver mobile toilets.

The way this ground of appeal is formulated is difficult to understand. It is not an issue that appellant and the complainant knew each other.

It is not clear as to which version of events the appellant seeks to relate to on this ground of appeal. This ground of appeal is therefore a double-edged sword, as it were. It is incorrect to say that the appellant and the complainant had transacted before in relation to the deal of supplying mobile toilets. Neither of the parties makes this allegation. The complainants' evidence is that the appellant had previously supplied her with rabbits. The appellant did not show that she had transacted with the complainant in a transaction involving mobile toilets. What is only common cause between the parties is that they were acquaintances, and they trusted each other. This can and should not be construed to mean proof of capacity on the part of the appellant to supply mobile toilets from China. It merely reinforces the fact that the complaint reposed her trust in the appellant because of this relationship.

The other version proffered by the appellant lacks tranction. There is no evidence placed before the court a quo that the appellant previously transacted with the complainant by moving money from Zimbabwe to China or to any other country. There is therefore again no evidence that the appellant had the capacity to supply mobile toilets as alluded to in this ground of appeal.

The lack of capacity is clear from the facts. No mobile toilets were delivered, even after being pestered by the complainant. To date, there is no paper trail of how the US$48,000 was handled by the appellant. No such evidence was availed before the *court a quo*. Even the said Mohamed was not asked to confirm the appellant's version. He could well be simply a phantom character.

The finding that the appellant lacked the capacity to supply mobile toilets from China is borne out of the clear facts. The court a quo cannot be faltered in making such a finding.

The second ground of appeal speaks to the fact that there was a civil law claim of breach of contract other than fraud as no misrepresentation was made. Further, it is said there is no proof of an intention to defraud. The appellant relied on the case of State v *Vambe* 1986 (1) ZLR 168, *Mapfumi* v *The State*. HMD 2/18 S V. *Brednkamp* 2013 (2) ZLR 228 (H) among other cases.

We understand the submissions by the appellant to be that the criminal offence of fraud was not proved, and that, at most this is a civil matter between the parties. Nothing can be further from the truth.

At pp. 17 to 18 of the judgement, the court a quo considered correctly the essential elements of the offence of fraud as defined in s136 of the criminal Law Code. The court a quo then proceeded to apply those legal requirements to the facts of this case.

To contextualise this ground of appeal, one has to first establish which version between that of the complainant and the appellant is truthful. If it is accepted that the complainant's version is truthful one cannot meaningfully argue that the offence of fraud is not proved and that this is simply a civil matter. The court *a quo* accepted the complainant's version. The misrepresentation material to the transaction was that appellant lied that he had the means or capacity to supply mobile toilets from China. This then induced the complainant to give the appellant the US $48 000. This turned out to be false, and the complainant was deceived. Actual prejudice was caused as no such mobile toilets were supplied and the US$48,000 was not recovered. In our view, the offence of fraud is clearly proved as outlined above. It is disingenuous to argue that such conduct amounts to a civil matter and not a criminal one. A material misrepresentation of fact was made, and appellant knew that such facts were false. The intent was clearly to deceive the complainant, who acted upon this misrepresentation, resulting in actual prejudice to the complainant.

We find no misdirection in this regard on the part of the court a quo.

This leads us to the last ground of appeal being ground of appal being ground number 3. In fact, this matter turns on this ground of appeal. Reduced to its bare bones, this ground of appeal is simply an assessment of which version between the complainant and the appellant is most probable and truthful. In specific terms, what was the purpose of the US$48,000 given to the appellant? Was it to transfer it to China in a criminal act of evading exchange control regulations, or was it for the purported purchase of mobile toilets by the appellant?

The court a quo believed the complainant and dismissed appellants' version as improbable and false. Is that a misdirection?

It is trite that the credibility of state witnesses is primarily the domain of the trial court. However the findings of the fact can not solely be based on the aspect of credibility alone. This proper approach is the cumulative assessment of both the State case and the defence case, looking at the objective facts of the matter. \

Indeed, the material witnesses on this discourse are Mandy Mvukwa for the State and the appellant. A conviction can be found even on the basis of a single credible witness. See s 269 of the Criminal Procedure and Evidence Act Chapter 9:07.

The gist of the appellant's argument is that the complainant Mandy Mvukwe fabricated the whole story relating to the importation of the mobile toilets from China our view, this submission lacks traction. There is a Board Resolution by Elegant Edge dated 25 April 2023, which authorised Mandy Mvukwe through a vehicle called Clinwich Pvt Ltd to venture into the business of mobile toilet starting with 300 units for a fee not exceeding is $50 000. Mandy Mvukwe was granted the relevant authority. In our view, there is no basis to regard this as a fabricated document.

The court a quo assessed the evidence of Mandy Mvukwa's especially on the purpose she gave the appellant the US$48,000. The appellant took issue with the exact name of the complainant in a bid to discredit Mandy Mvukwe. The point is made, however, that the State is the complainant in a criminal case. In casu, the victim is inconsequential, as in our view, Mandy Mvukwe is a representative of the company called Elegant Edge. This argument can not be used to cloud the issue of the probable version between the complainant and the appellant, more so when appellant admits he received the US$48,000 from Mandy Mvukwe.

Mandy Mvukwe was very consistent on why she paid appellant the US$48,000.

The same cannot be said of the appellant. The appellant admitted that his defence outline is at variance with his evidence in court. It is foolhardy to accept his explanation that he gave in his defence outline to his counsel under duress. It is trite that a defence outline is given at the behest of an accused person, see *Gibson* v *The State* SC -16 -14; *Chigova v The State* 1992 (2) ZLR 206 (S)

The appellant simply purports that the transaction was of an illegal nature. It is merely that his say so. He cannot provide any paper trail of the money. His evidence as to what happened to the US$48,000 is very hazy. The said Mohamed, whom he said received the money, is not called to support his story. In our view, the court a quo correctly rejected the appellant's version. This should not be construed to imply that the onus was shifted to the appellant.

The court a quo cannot be faulted for concluding that the agreement was for the appellant to purchase and supply mobile toilets from China. We find no misdirection in this regard.

All the grounds of appeal in respect of the conviction lack merit. The conviction of the appellant on a charge of fraud is proper. The appeal against the conviction cannot succeed.

AD SENTENCE

It is trite law that the sentence is a discretion of the trial court. It can only be interfered with by on appeal or review if the trial court has not exercised its discretion judiciously. See *Attorney General* v *Bvuma* 1987 (2) ZLR 96 (S)

The sentence for fraud, as per the criminal law code chapter 9:23, is a fine not exceeding level fourteen or not exceeding twice the value of any property obtained by an accused as a result of the crime, whichever is greater or imprisonment for a period not exceeding thirty-five years or both.

The Sentencing guidelines Regulations SI 146 /23 provides for a presumptive penalty of 20 years imprisonment.

In our view, the court a quo properly assessed the sentence. In fact, it erred on the side of leniency. Actual prejudice was caused, and it is not low or insignificant amount. No voluntary compensation was made. A loss of US$48,000 is a significant amount. It was not recovered. The appellant abused the trust Mandy Mukwa reposed in him. To add salt to injury, the appellant sought to blame the victim for the loss and impute some criminal conduct on the part of the victim. No contrition has been shown by the appellant.

Turning to the overall sentence itself, we find no misdirection other than a mathematical error, which can be corrected as it is not prejudicial. Clearly, the court a quo intended to suspend six months imprisonment on condition of good behaviour and not the effective sentence remains 6 months after such an amendment.

The court a quo applied correct principles in the sentence. Part of the sentence was suspended on condition of good behaviour as appellant is a first offender. In order to degorge the appellant from benefiting from his criminal conduct and to ensure the victim does not suffer permanent loss, part of the sentence was suspended on condition of restitution.

In view of the level of appellant's moral blameworthiness an option to perform community service would clearly be an unwarranted slap on the wrist. The appellant's conduct and the amount involved deserve an effective custodial sentence.

The appeal against the sentence is simply a fishing expedition and clearly lacks merit. It cannot succeed.

Disposition

We find no misdirection on the part of the court a quo. The appeal against both conviction and sentence cannot succeed. The amendment we make is respect of the sentence is twofold. It relates to the period suspended on condition of good behaviour and the period within which to pay restitution.

It is ordered as follows;

1. The appeal against both the conviction and sentence be and is hereby dismissed.
2. The sentence of 18 months imprisonment is amended by the deletion of four months imprisonment and substituting it with 6 months imprisonment as the period suspended on condition of good behaviour as outlined by the court a quo. The rest of the sentence remains as it is.
3. For the avoidance of doubt and clarity, of the remaining 12 months imprisonment, six months imprisonment is suspended on condition the accused (now appellant) restitutes the complaint the sum of US$48000 or its equivalent in Zig at the interbank rate on or before 21 February 2026. The effective term of imprisonment remains at six months.

MAWADZE DJP…….

WAMAMBO J agrees……

*Maposa & Ndomene,* appellant's legal practitioners
*The National Prosecuting Authority*, the respondent's legal practitioners